

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1118

By: Stewart

AS INTRODUCED

An Act relating to state government; enacting the Freedmen of Oklahoma Act; providing for forfeiture of certain cooperative agreements and contracts by Indian tribes under certain circumstances; providing for forfeiture of funds by Indian tribes under certain circumstances; providing that the Attorney General shall bring certain court proceedings; creating the Freedmen of Oklahoma Commission; providing duties; providing for membership of Commission; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1227.1 of Title 74, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Freedmen of Oklahoma Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1227.2 of Title 74, unless there is created a duplication in numbering, reads as follows:

1       A. Federally recognized Indian tribes in the State of Oklahoma  
2 that fail to grant citizenship rights to freedmen descendants,  
3 pursuant to their respective treaties, shall:

4       1. Forfeit all cooperative agreements and contracts with the  
5 State of Oklahoma. Provided, however, that any intergovernmental  
6 cooperative agreements entered into pursuant to subsection D of  
7 Section 1221 of Title 74 of the Oklahoma Statutes shall be excluded  
8 from forfeiture; and

9       2. Forfeit all funds received or expended by the State of  
10 Oklahoma for the benefit of the tribe, except as may be required by  
11 law.

12       B. The Office of the Attorney General shall bring court  
13 proceedings in the proper courts to enforce this act.

14       SECTION 3.       NEW LAW       A new section of law to be codified  
15 in the Oklahoma Statutes as Section 1227.3 of Title 74, unless there  
16 is created a duplication in numbering, reads as follows:

17       A. There is hereby created the Freedmen of Oklahoma Commission  
18 to enforce the rights defined in Section 2 of this act to study the  
19 economic and social impacts of the 1866 treaties and their ongoing  
20 implementation, including, but not limited to, tribal citizenship of  
21 and benefits for freedmen and their descendants.

22       B. The Commission shall be comprised of fifteen (15) members to  
23 be appointed as follows:

24       1. Five members by the Governor;

1        2. Five members by the Speaker of the Oklahoma House of  
2 Representatives; and

3        3. Five members by the President Pro Tempore of the Oklahoma  
4 State Senate.

5        SECTION 4. This act shall become effective November 1, 2025.

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